

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
RICHARD SANTIAGO

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD DETECTIVE
STEVEN STILLER, Shield No. 5351, and NYPD POLICE
OFFICERS JOHN AND JANE DOE NUMBERS ONE
THROUGH TEN,Plaintiff designates New York
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 13, 2023

Yours, etc.

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE STEVEN STILLER, Shield No. 5351, 7th Precinct Detective Squad,
19 1/2 Pitt Street, New York, NY 10002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

RICHARD SANTIAGO

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
STEVEN STILLER, Shield No. 5351, and NYPD POLICE
OFFICERS JOHN AND JANE DOE NUMBERS ONE
THROUGH TEN,

Plaintiff designates New York
County as the place of trial.

Defendants.

----- X

Plaintiff RICHARD SANTIAGO, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 13, 2020, at approximately 5:00 a.m., Plaintiff RICHARD SANTIAGO was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff suffered mental and emotional injury as a result of his unlawful arrest. Plaintiff was subjected to unlawful imprisonment for approximately three (3) days before he was finally released. All charges against the Plaintiff were dismissed and sealed on January 26, 2023. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully questioned, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff RICHARD SANTIAGO is a resident of the state of New York.

3. NYPD Detective Steven Stiller, Shield No. 5351, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD Detective Steven Stiller, Shield No. 5351, is being sued in his individual and official capacities.

5. NYPD Detective Steven Stiller, Shield No. 5351, was at all times relevant herein assigned to the NYPD 7th Precinct Detective Squad.

6. NYPD Police Officers John and Jane Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD Police Officers John and Jane Does Numbers One through Ten are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On May 13, 2020, at approximately 5:00 a.m., Plaintiff was lawfully present inside his apartment in the vicinity of 154 Broome Street, County of New York, State of New York, when he was subjected to an unlawful search, false arrest, false imprisonment, and denial of various constitutional rights by the defendant NYPD police officers.

12. At the aforementioned place and time, Plaintiff was asleep in his bedroom, in an apartment where he was living with his mother, father, brother, and sister.

13. While Plaintiff was asleep, approximately ten (10) defendant police officers knocked on the apartment door and entered the apartment after Plaintiff's father answered the door.

14. Defendant police officers went to the bedroom where Plaintiff and his brother were sleeping and woke them both up.

15. Defendant officers ordered Plaintiff to get out of bed and get dressed and he complied.

16. Once Plaintiff was dressed, defendant police officers began to arrest him, along with his mother, sister, and brother, pinning Plaintiff's arms behind his back and locking them in metal handcuffs.

17. Plaintiff did not resist arrest.

18. Plaintiff asked defendant officers why he was being arrested and they refused to answer him.

19. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendant police officers have an objective credible reason to believe that Plaintiff had been involved in criminal activity.

20. At no point did defendant police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

21. Nevertheless, Plaintiff was unlawfully arrested by defendant police officers, and restrained with metal handcuffs.

22. Plaintiff was placed in the back of an NYPD vehicle and transported to an NYPD Police Station against his will; upon information and belief, the NYPD 7th Precinct.

23. At the 7th Precinct, Plaintiff was fingerprinted, photographed, interrogated, and placed in a holding cell.

24. Plaintiff was then transferred to New York County Central Booking, where he was placed in a holding cell overnight.

25. Upon information and belief, during his time in custody, defendant police officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to New York County District Attorney's Office, to wit: Burglary in the First Degree and other related charges.

26. The plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and bail was set at \$50,000.

27. While waiting to post bail, Plaintiff spent three (3) days at the Manhattan Detention Complex ("MDC").

28. Although Plaintiff's family posted his bail on the day after his arraignment in criminal court, he was not released until two (2) days later, as the facility was locked down due to constant alarms for the unchecked violence occurring there.

29. Plaintiff was forced to hire a private criminal defense attorney for approximately \$10,000 to defend against these false charges.

30. The false charges made against plaintiff were dismissed and sealed in their entirety on January 26, 2023.

31. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

32. The unlawful search, seizure, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

66. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individually named parole officer and police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION

False Imprisonment

69. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Failure to Intervene

73. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

79. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

80. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

81. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

82. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

83. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

84. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

FIFTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

85. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

87. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

88. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately three (3) days in total.

89. By reason of the acts and omissions by Defendants described above, Plaintiff has endured emotional injuries and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

90. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

92. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

93. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

94. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

95. By reason of the acts and omissions by Defendants described above, Plaintiff has endured emotional injuries and was otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

96. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

98. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

99. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

100. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately three (3) days in total.

102. By reason of the acts and omissions by Defendants described above, Plaintiff has endured emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

103. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

104. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

105. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

106. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

107. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

108. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

109. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

110. By reason of the acts and omissions by Defendants described above, Plaintiff has endured emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

Malicious Prosecution

111. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

112. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution and the laws of New York State.

113. Defendants commenced and continued a criminal proceeding against Plaintiff.

114. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

115. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

116. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

117. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

118. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered emotional injuries, as well as a deprivation of liberty.

119. As a result of the above tortious conduct, Plaintiff was caused to suffer emotional injuries, as well as a deprivation of liberty.

120. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

121. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

122. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

123. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

124. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

128. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

129. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

130. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries

JURY DEMAND

131. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
July 13, 2023

Yours, etc.

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE STEVEN STILLER, Shield No. 5351, 7th Precinct Detective Squad,
19 1/2 Pitt Street, New York, NY 10002

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 13, 2023

LARA BELKIN, ESQ.